

Most Important Terms and Conditions (MITC)

Please read carefully and ACCEPT to continue

I/We:

I hereby give my consent and specifically confirm that the Financing Documents submitted by me shall be valid, effective and legally enforceable against me. For the purpose hereof, a document shall be deemed to be "Electronically Signed" if it has been encrypted / authenticated by using an electronic method or procedure in accordance with the provisions of the Information Technology Act, 2000 or in any other manner / method / procedure / technique as is recognized / envisaged as a valid method of encryption / authentication under the provisions of the Information Technology Act, 2000.

I/We agree and confirm:

These Most Important Terms and Conditions (MITC) shall govern the general terms and conditions applicable to the Loan (defined below) to be provided to Borrower (defined below) by the Lender, a company as defined in the Companies Act, 2013, (hereinafter referred to as the "Lender" (as defined in the Offer-Cum Sanction Letter), which expression shall, unless repugnant to the subject, context or meaning thereof, be deemed to include its executors, its successors-in-interest and any assigns and/or any finance partner(s) with whom Lender has entered into a co-lending agreement.

1. DEFINITIONS

1. The terms and expressions contained in this MITC and the Customer Application Form are defined as under:

- a. **"Applicant"** means to any person or entity who has shown interest in or has applied for a Loan from the Lender;
- b. **"Borrower"** means and refers jointly and severally to the applicant(s) who has / have been sanctioned/granted the Loan by the Lender (as defined hereunder) based on the duly filled in Loan Application Form submitted by such applicant(s) to the Lender for availing of the Loan means and refers jointly and severally to the applicant(s) who has / have been sanctioned/granted the Loan by the Lender based on the duly filled in Loan Application Form submitted by such applicant(s) to the Lender for availing of the Loan;
- c. **"Borrower's Dues"** means all sums payable by the Borrower to Lender, including outstanding Loan, interest, all other charges, costs and expenses;
- d. **"Platform"** shall refer to all website (including all associated site links) and/or mobile based application/and/ or such other website and/or mobile based application/platform, referred by the Lender and used by the Borrower to apply for limit/loan;
- e. **"Due Date"** in respect of any payment means the date on which any amount is due from the Borrower to Lender and such date as changed by the Lender from time to time upon intimation to the Borrower through written means.
- f. **"EMI"** means the Equated Monthly Installment amount to be paid by the Borrower on the scheduled Due Date as per Financing Documents;
- g. **"EMI Overdue Amount"** means the portion of the Loan principal along with the interest that has been due under this Agreement but remains unpaid as on its due date.
- h. **"Loan"** means the amount of the financial assistance sanctioned to the Borrower as per the Offer-Cum Sanction Letter, or as displayed on the Platform, which will be or has been made available, to the extent the same is not cancelled, reduced or transferred by the Lender as per the terms of Financing Documents;
- i. **"Financing Documents"** means these MITC, Customer Application Form, Offer-Cum Sanction Letter,, Key Fact Statement (KFS), Statement of Accounts (SoA) including the annexures hereto and any documents executed by the Borrower or as required by Lender, as amended from time to time;
- j. **"Loan Application"** means the application in the prescribed form as submitted from time to time by the Borrower to Lender for seeking financing;
- k. **"Offer-Cum Sanction Letter"** subject to the Loan availed by the Borrower shall mean the Offer-Cum Sanction Letter issued by the Lender containing the relevant commercial terms and conditions applicable to the Loan;
- l. **"Material Adverse Effect"** means any event which in Lender's opinion would have an adverse effect on (i) Borrower's ability to pay the Borrower's Dues or (ii) recoverability of the Borrower's Dues;
- m. **"Late Payment Charges"** means the default charges as prescribed either in the KFS or as displayed on the website., i.e. on <https://sicrevacapital.com> or its mobile application, which is payable on all amounts which are not paid on their respective Due Dates;
- n. **"Purpose"** means the utilization of Loan as mentioned in the Offer-Cum Sanction Letter.
- o. **"Cooling off period"** means a period of time from the date of disbursement of Loan within which the borrower can change her/ his mind with return or cancellation of the Loan without any prepayment charges.
- p. **"Lock-in Period"** shall mean the period, during which the borrower shall not be entitled to prepay or repay the loan.
- q. **"Overdue Principal Amount"** means the portion of the Loan principal that has become due under this Agreement but remains unpaid on its due date.

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r. "**Pre-Payment**" means the premature repayment of the entire Loan including the Rate of Interest, Fee, and other charges, according to the terms as detailed in these Terms & Conditions, through any mode as approved by the Lenders. Notwithstanding the foregoing, the Customer shall not be entitled to prepay the Loan, whether in full or in part, prior to the scheduled repayment dates, and all amounts shall be payable strictly in accordance with the repayment schedule specified herein.

s. "**Total Overdue Amount**" means the portion of the Loan principal and interest that has become due under this Agreement but remains unpaid on its due date along with balance total principal and interest amount outstanding along with applicable dues if any.

2. In this Agreement, (a) the singular includes the plural (and vice versa) and (b) reference to a gender shall include references to the female, male, and neutral genders.

2. DISBURSEMENT

1. Subject to the provisions of the Financing Documents, the Borrower may at any time during the Validity Period of offer, request the Lender for disbursement the Loan to the extent of the available loan amount. The Lender shall at its sole and absolute discretion allow or reject such request for the Loan. Notwithstanding anything contained in this MITC, Lender shall have the absolute right to cancel or refuse any further Loan at its sole and absolute discretion as it may deem fit, including on account of any change in credit evaluation of the Borrower.
2. The disbursement of any Loan directly to any vendor / seller/ healthcare institution or its authorized person for any Purpose shall be treated as having been disbursed to the Borrower.
3. The Borrower shall pay non-refundable processing fees as stated in the KFS, Offer-Cum Sanction Letter or as displayed on the Lender's website., i.e. on <https://sicrevacapital.com> or its mobile application, along with tax thereof, which may be added as a deemed disbursement to the Loan and the Borrower will accordingly be liable for entire amount. Provided that, if the processing fees as mentioned in the KFS is revised by the Lender, the same shall be updated on its website/mobile application, an intimation thereof shall be sent to the Borrower and applied prospectively.
4. The Borrower shall utilize the disbursed loan exclusively for the Purpose as stated in the Offer-Cum Sanction Letter, and for no other purpose.
5. The Lender reserves the right to cancel or modify the terms of Offer-Cum Sanction Letter before disbursing of the loan, in accordance of its policy, without assigning any reason.

3. PAYMENT/REPAYMENT AND INTEREST

1. The Borrower shall repay/pay the entire Loan in one or more instalments along with the interest thereon to the Lender in such manner as agreed/specified by the Lender from time to time, on the respective Due Date. Subject to Clause 05 (mentioned hereunder), the Borrower agrees to pay to the Lender interest on the Loan or such part thereof as may be outstanding from time to time at such interest rate, which has been indicated by Lender at the time of making the offer for the Loan. However, in such cases, in the event the installment is not paid on the Due Date, all overdue amounts shall accrue Late Payment Charges which shall be computed from the respective due dates for payments until payment of such dues, as prescribed in KFS.
2. The Borrower agrees that the loan is subject to a Lock-in Period of 50% of the total loan tenure. During this period, the Borrower shall not be allowed to prepay or foreclose the loan, either partially or fully. If the Borrower wishes to prepay or foreclose the loan during the Lock-in Period, they may do so, subject to payment of a Lock-in fee, as specified in the Key Facts Statement (KFS), in addition to any applicable prepayment or foreclosure charges outlined in the KFS. The relevant fees will also be disclosed on the Lender's website at <https://sicrevacapital.com>. The Lock-in Period shall apply only to loans with a tenure exceeding six (6) months.
3. The Lender shall levy foreclosure charges if the Borrower opts to foreclose the loan after the completion of Lock-in Period. The Borrower shall pay to the Lender such foreclosure charges as mentioned in KFS and the same shall be displayed on the Lender's website i.e. <https://sicrevacapital.com>, as applicable. Provided that, if the Lender revises the foreclosure charges as mentioned in the KFS, such revision shall be updated on the Lender's website/mobile application and separately communicated to the Customer. Any revision resulting in an increase in charges shall be applicable only after obtaining the Customer's prior consent. Any revision on the lower side shall be applied prospectively.
4. The tenure of each Loan shall be as provided in the Offer-Cum Sanction Letter. EMI shall be as calculated by Lender as required within their respective tenure and interest payable thereon and not exceeding the maximum EMI as provided in the Offer-Cum Sanction Letter or its mobile application. EMI shall only be towards principal outstanding and interest thereon and does not include any default interest or any other charges payable by the Borrower pursuant to Financing Documents.
5. The payment of each EMI on time is the essence of the contract. The Borrower acknowledges that s/he has understood the method of computation of EMI and shall not dispute the same.
6. Notwithstanding anything to the contrary in the Financing Documents, the Lenders shall always reserve the right to revise the rate of interest and charges whether upwards or downwards, on all existing advances/financial assistance, if so required under any applicable law. Any such change, as intimated by Lenders to Borrower (through modes such email or otherwise in the manner prescribed for the same from time to time by Lenders, etc.), will be final and binding on the Borrower prospectively.
7. The rate of interest applicable to the Loan availed shall be as prevailing on the date of disbursement and will be based upon the Lenders evaluation of the creditworthiness of the Borrower, the risk profiling done by the Lenders, etc.
8. Any dispute, including that relating to the interest computation or tenure, shall not entitle the Borrower to withhold payment demanded by the Lenders and/or payment of any dues.

9. In case of delayed payments, without prejudice to all other rights of Lender, Lender shall be entitled to Late Payment Charges (as prescribed in Offer-Cum Sanction Letter or as displayed on the website, i.e. on <https://sicrevacapital.com> or its mobile application or as communicated to the borrower from time to time) from the Borrower for the period of delay.
10. It is clarified that the amounts repaid by the Borrower shall be appropriated firstly towards interest due and payable and or/ accruing due and payable, secondly towards repayment of the amount of any instalment(s) of the principal sums due and payable or becoming due and payable, thirdly towards **Late Payment Charges, penal charges, dues, cost, charges** (as disclosed in KFS), expenses, etc. (hereinafter referred to as "Dues"), due and payable or become due and payable to the Lender as per its policies which shall be communicated to the Borrower from time to time. It is further clarified that in the event the Borrower fails to make timely repayment of EMI and such default results in EMI bounces, the Lender may levy and recover Dues in accordance with applicable laws, regulatory guidelines and KFS. Any amount received by the Lender shall be appropriated in a fair and transparent manner, first towards Dues that are lawfully due and overdue, and thereafter, the balance amount, if any, shall be adjusted towards due interest and the principal outstanding.
11. In the event any Dues remains outstanding as on the due date of the final EMI of the loan, such Dues shall be payable by the Borrower together with the final EMI.
12. Interest (if applicable), Late Payment Charges and all other charges shall accrue from day to day and shall be computed on the basis of 365/366 days (as may be applicable) a year and the actual number of days elapsed.
13. All sums payable by the Borrower to Lender shall be paid without any deductions whatsoever.

4. **MODE OF PAYMENT, REPAYMENT AND PREPAYMENT**

1. The Borrower shall, as required by Lender from time to time, provide National Automated Clearing House (Debit Clearing)/ any other electronic or other clearing mandate (collectively referred to as "Auto Debit Mandate") as notified by the Reserve Bank of India ("RBI") against Borrower's bank account for payment of dues. The Borrower shall honor all payments i.e. Auto Debit Mandate without fail on due dates which may be utilized by Lender for realization of any Borrower's Dues. The Borrower hereby unconditionally and irrevocably authorizes Lender to take all actions required for such realization including splitting the Auto Debit Mandate amount into smaller amounts towards recovery of overdue EMIs. The Borrower shall promptly (and in any event within seven (7) days) replace the Auto Debit Mandate and/or other documents executed for payment of Borrower's Dues as may be required by Lender from time to time, at its sole discretion.
2. The Borrower shall, at all times maintain sufficient funds in his/her bank account for due payment of the Borrower's Dues on respective Due Dates. Borrower shall not close the bank account from where Auto Debit Mandate have been issued or cancel or issue instructions to the bank or to Lender to stop or delay payment under Auto Debit Mandate. Lender is not bound to take notice of any such communication in this regard.
3. The Borrower agrees and acknowledges that the Auto Debit Mandate have been issued voluntarily in discharge of the Borrower's Dues and not by way of a security for any purpose whatsoever. The Borrower also acknowledges that dishonor of any Auto Debit Mandate is a criminal offence under the Negotiable Instruments Act, 1881/The Payment and Settlement Systems Act, 2007. The Borrower shall be liable to pay bounce charges for each Auto Debit Mandate dishonour (as prescribed in Offer-Cum Sanction Letter or as displayed on the website, i.e. on <https://sicrevacapital.com> or its mobile application).
4. Any dispute or difference of any nature whatsoever shall not entitle the Borrower to withhold or delay payment of any EMIs or other sum and Lender shall be entitled to present the Auto Debit Mandate on the respective due dates.
5. Notwithstanding the issuance Auto Debit Mandate the Borrower will be solely responsible to ensure timely payment of dues.
6. Subject to the provisions set forth hereinabove, the lender shall acknowledge various modes of payment from the borrower for the purpose of payment or repayment, as provided for in the App, web and TPAPs approved by regulatory authorities such as Debit Card, Netbanking, UPI, IMPS, NEFT, RTGS, BBPS etc depending upon the availability.
7. The Borrower shall ensure that the loan repayments must be exclusively from their own bank account and not from any other individual's/organization's bank account. Payments made from a third-party account may be rejected or automatically refunded.

5. **BORROWER'S COVENANTS, REPRESENTATION AND WARRANTIES**

1. **The Borrower shall:**

- a. Observe and perform all its obligations under the Financing Documents.
- b. Immediately deliver to Lender all documents, including bank account statements as may be required by Lender from time to time. The Borrower also authorizes Lender to communicate via Account Aggregator with (a) any bank where the Borrower maintains an account and to seek details and statement in respect of such account from the bank and (b) with any employer of any Borrower/family members, any other person related to the Borrower, as Lender may deem necessary, including for monitoring Borrower's creditworthiness. The Lender shall have the right to not return the application, the photographs, information and documents submitted by the Borrower.
- c. Immediately notify Lender of any litigations or legal proceedings against any Borrower.
- d. Notify Lender of any Material Adverse Effect or Event of Default (as described hereunder).



- e. Notify Lender in writing of all changes in the location/ address of office /residence /place of business or any change/resignation/termi- nation / closure of employment/ profession /business.
- f. Not leave India for employment or business or long term stay abroad without fully repaying the Loan then outstanding, together with interest and other dues and charges.
- g. Provide security, if any, as specified in Financing Documents or as may be required by the Lender in case of any change in credit worthiness of any Borrower (as determined by Lender).
- h. Ensure deposit of salary and / or business proceeds in the account from which Auto Debit Mandate have been issued to Lender. The Borrower also authorizes the Lender to resubmit the Auto Debit Mandate on any date with prior intimation in case the EMI bounces. The Borrower agrees that non-receipt of any EMI alert shall not be valid grounds for non-payment of any EMI.
- i. Comply at all times with applicable laws, including, Prevention of Money Laundering Act, 2002, as amended from time to time.
- j. Utilise each Loan only for the Purpose stated by Borrower (if any) in the Loan application.
- k. Submit the updated copies of such KYC documents to the Lenders within a period of thirty (30) days, if there occurs any change in the KYC documents submitted by the Borrower for availing the Loan.

2. Each Borrower represents and warrants to Lender as under:

- a. All the information provided by Borrower in the Customer Application Form and any other document, whether or not relevant for ascertaining the credit worthiness of the Borrower, is true and correct and not misleading in any manner;
 - b. The Borrower is capable of and entitled under all applicable laws to execute and perform the Financing Documents and the transactions thereunder;
 - c. The Borrower is above 18 (Eighteen) years of age and this MITC is a legal, valid and binding obligation on him/her, enforceable against him/her in accordance with its terms;
 - d. The Borrower declares that he/ she is not prohibited by any law from availing this Loan;
 - e. No event has occurred which shall prejudicially affect the interest of Lender or affect the financial conditions of Borrower or affect his/ her liability to perform all or any of their obligations under the Financing Documents;
 - f. Borrower is not in default of payment of any taxes or Government dues;
 - g. The Borrower will do all acts, deeds and things, as required by Lender to give effect to the terms of this MITC;
 - h. That there are no bankruptcy or insolvency proceedings against the Borrower.
3. The Borrower gives its consent to Lender to use/store all the information provided by the Borrower or otherwise procured by Lender in the manner it deems fit including for the Purpose of this Loan or for its business and understands and agrees that Lender may disclose such information to its contractors, agents and any other third parties in accordance with the privacy policy.

6. EVENTS OF DEFAULT

1. The following acts/events, shall each constitute an “Event of Default” by the Borrower for the purposes of each Loan:

- a. The Borrower fails to make payment of any Borrower's Dues on Due Date;
 - b. Breach of any terms, covenants, representation, warranty, declaration or confirmation under the Financing Documents;
 - c. Any fraud or misrepresentation or concealment of material information by Borrower which could have affected decision of Lender to grant any Loan;
 - d. Death, lunacy or any other permanent disability of the Borrower;
 - e. Borrower utilises the Loan for any purpose other than the Purpose stated by Borrower (if any) in the Loan application;
 - f. Occurrence of any events, conditions or circumstances (including any change in law) which in the sole and absolute opinion of Lender could have a Material Adverse Effect, including limitation of any proceedings or action for bankruptcy/liquidation/ insolvency of the Borrower or attachment / restraint of any of its assets;
 - g. Shall not revoke the NACH Mandate without prior approval of the Lender;
2. Any occurrence or event beyond those expressly listed herein, whether similar in nature or otherwise, shall be deemed to constitute an Event of Default.
3. The decision of Lender as to whether or not an Event of Default has occurred shall be binding upon the Borrower.
4. The circular on the Prudential Framework for Resolution of Stressed Assets requires the lenders to recognize incipient stress in Borrower(s)'s accounts, immediately on default, by classifying them as special mention accounts (SMA). The basis for classification of SMA categories shall be as follows:

Loans other than revolving facilities	
SMA Subcategories	Basis for classification – Principal or interest payment or any other amount wholly or partly overdue
SMA-0	Upto 30 days
SMA-1	More than 30 days and up to 60 days
SMA-2	More than 60 days and up to 90 day

The date of SMA/NPA shall reflect the asset classification status of an account at the day-end of that calendar date. Example: If due date of a loan account is March 31, 2021, and full dues are not received before the lending institution runs the day-end process for this date, the date of overdue shall be March 31, 2021 and this account shall get tagged as SMA-0 upon running day-end process on March 31, 2021. If it continues to remain overdue, then this account shall be tagged as SMA-1 upon running day-end process on April 30, 2021 i.e. upon completion of 30 days of being continuously overdue. Accordingly, the date of SMA-1 classification for that account shall be April 30, 2021. Similarly, if the account continues to remain overdue, it shall get tagged as SMA-2 upon running day-end process on May 30, 2021 and if continues to remain overdue further, it shall get classified as NPA upon running day-end process on June 29, 2021.

5. The Borrower(s) acknowledges that as per RBI guidelines, classification of accounts as NPA is done borrower wise and not facility wise and hence, it may be noted that in case of non-payment of dues by the Borrower(s) in case of any facility availed from the Banks and consequently the account is to be classified as NPA, all other loan accounts of the Borrower(s) with the Bank also shall be classified as NPA as per the guidelines issued by RBI and it shall entitle the Bank to recall all such loans/facilities availed by the same customer from the Bank, irrespective of the regular repayment in such accounts.

7. CONSEQUENCES OF DEFAULT

- Upon occurrence of any of the Events of Default and at any time thereafter, Lender shall have the right, but not the obligation to declare all sums outstanding in respect of the Loan, whether due or not, immediately repayable and upon the Borrower failing to make the said payments within 15 (fifteen) days thereof, Lender may at its sole discretion exercise any other right or remedy which may be available to Lender under any applicable law, including seeking any injunctive relief or attachment against the Borrower or their assets.
- The Borrower hereby agrees that if the Borrower commits a default in repayment of any amounts due under this agreement, the Lender may initiate skip tracing activities either directly or through agencies or its authorized agents to enable recovery of delayed payments. Skip tracing is a method of determining the whereabouts of the Borrower and verifying information pertaining to the Borrower by accessing public records, such as CIBIL records, and contacting social connections, etc.
- The Borrower shall also be liable for payment of all legal and other costs and expenses resulting from the foregoing defaults or the exercise of Lender remedies.
- The Borrower will be sent reminders from time to time for settlement of any outstanding Loan, by post, fax, telephone, e-mail, SMS and/ or any other mode of communication as deemed fit by the Lender engaging third parties to remind, follow up and collect dues. Any third party so appointed, shall adhere fully to the code of conduct on debt collection.

8. DISCLOSURES

- The Borrower acknowledges and authorizes Lender to disclose all information and data relating to Borrower, the Loan, default if any, committed by Borrower to such third parties/ agencies as Lender may deem appropriate and necessary to disclose and/or as authorized by RBI, including TransUnion CIBIL Limited ("CIBIL"). The Borrower also acknowledges and authorizes such information to be used, processed by Lender / third parties/ CIBIL / RBI as they may deem fit and in accordance with applicable laws. Further in Event of Default, Lender and such agencies shall have an unqualified right to disclose or publish the name of the Borrower /or its directors/ partners/ co-applicants, as applicable, as 'defaulters' in such manner and through such medium as Lender / CIBIL/ RBI/ other authorized agency in their absolute discretion may think fit, including in newspapers, magazines and social media.
- The Borrower shall not hold Lender responsible for sharing and/or disclosing the information now or in future and also for any consequences suffered by the Borrower and/or other by reason thereof. The provisions of this clause 8 shall survive termination of the MITC and the repayment of the Borrower's dues.
- This MITC constitutes the entire arrangement between the Parties with respect to the subject matter hereof and supersedes all prior written agreements, understandings and negotiations, both written and oral, between the Parties with respect to the subject matter of this document.

9. MISCELLANEOUS

- The entries made in the records of Lender shall be conclusive evidence of existence and of the amount Borrower's Dues and any statement of dues furnished by Lender shall be accepted by and be binding on the Borrower.
- Borrower's liability for repayment of the Borrower's Dues shall, in case where more than one Borrower have jointly applied for any Loan, be joint and several.

3. Borrower shall execute all documents and amendments and shall co-operate with Lender as required by Lender (i) to comply with any RBI guidelines / directives or (ii) for giving Lender full benefit of rights under the Financing Documents. Without prejudice to the aforesaid the Borrower hereby irrevocably consents that on its failure to do so, such changes shall be deemed to be incorporated in the Financing Documents and shall be binding on the Borrower.
4. The Borrower acknowledges that the rate of interest, penal charges, service charges and other charges payable and or agreed to be paid by the Borrower under Financing Documents are reasonable and acceptable to him/ her.
5. The Borrower expressly recognizes and accepts that Lender shall without prejudice to its rights to perform such activities itself or through its office employees be entitled and has full power and authority so to appoint one or more third parties (hereinafter referred to as "Service Providers") as Lender may select and to delegate to such party all or any of its functions, rights and power under Financing Documents relating to the sourcing, identity and verification of information pertaining to the Borrower, administration, monitoring of the Loan and to perform and execute all lawful acts, deeds, matters and things connected therewith and incidental thereto including sending notices contact- ing Borrower, receiving Cash/Cheques/Drafts/ Mandates from the Borrower in favour of Lender.
6. The Borrower acknowledges that the financing transaction hereunder gives rise to a relationship of debtor and creditor as between him / her and Lender and not in respect of any service rendered/to be rendered by Lender. Accordingly, the provisions of the Consumer Protection Act, 1986 shall not apply to the transaction hereunder.
7. If required by the lender, the Borrower hereby authorizes Lender to verify all information and documents including, income proof documents, residence documents, address proof documents, identity documents and other such documents containing personal and financial information as are submitted by them for obtaining any Loan and that they also consent to subsequent retention of the same by Lender.
8. The Borrower acknowledges and authorizes Lender to procure Borrower's PAN No./copy of Pan Card, other identity and address proof and Bank Account details, from time to time. The Lender may validate the Borrower's details from NSDL and CERSAI and any other Governmental agencies. The Lender shall obtain credit information of the Borrower from agencies such as CIBIL, Experian, Hunter etc, and also obtain such other reports as and when required for the validation of credit worthiness of Borrower.
9. The Borrower also hereby gives consent and authorizes Lender to undertake its KYC verification by Aadhar e-KYC or otherwise and undertake all such actions as may be required on its behalf or otherwise to duly complete the process of such verification including by way of Aadhar e-KYC and share such information with any authority and store such information in accordance with the applicable laws.
10. In the event of any disagreement or dispute between the Lender and the Borrower regarding the materiality of any matter including of any event occurrence, circumstance, change, fact information, document, authorization, proceeding, act, omission, claims, breach, default or otherwise, the opinion of Lender as to the materiality of any of the foregoing shall be final and binding on the Borrower.
11. The Borrower and Lender may mutually agree on grant of a fresh Loan on the terms and conditions of the MITC and by execution of such further letter/undertaking by the Borrower as may be required by Lender.
12. If the Borrower voluntarily avails any services along with the Loan from any of the third parties whose products are being sold by the Lender as a bundled product including but not limited to life insurance, health insurance, general insurance plans, consumer durable insurance, extended warranty, or any other offers/products/services offered by third parties, then the Borrower hereby acknowledges that Lender shall not be held responsible for non-provision of services by such third parties.
13. The Lender retains the primary right of set off and in exercise of the Lender's general lien under law, the Lender shall also have a paramount right of lien on all monies, deposits belonging to the Borrower(s) or standing to the Borrower(s)'s credit (whether singly or jointly with other person/s) which are or may at any time with or in possession or control of the Lender for any reason or purpose whatsoever.
14. Appointment of third parties by the Lender
The Borrower accepts that the Lender shall without prejudice to its right to perform the activities itself or through its officers or employees or other authorised agents, be entitled, and have full power and authority, to appoint one or more third parties and delegate to such third party all or any of its functions, rights and powers under this Agreement relating to the administration of the Loan including the right to collect and receive on behalf of the Lender all the dues under this Agreement and give valid and effectual receipts and discharge to the Borrower and to perform and execute all lawful acts, deeds, matters and things connected herewith or incidental hereto. For the purpose aforesaid or any other purpose which the Lender at the sole discretion may deem fit, the Lender shall be entitled to disclose to such third parties all necessary and relevant information pertaining to the Borrower. The details of the Recovery mechanism are annexed in Schedule- 1.
15. The Lender facilitates resolution of customer's grievances. In the event of any complaint/ issue please refer to the Grievance Officer details annexed in Schedule-2.
16. The Lender and its authorized representatives shall have a right to conduct audit of the Borrower to ascertain any fraud by the Borrower, whether by its internal or external auditors, or by agents appointed to act on its behalf and to obtain copies of any audit or review reports and findings made on the Borrower. Such determination shall be made in adherence to the principles of natural justice, after providing the Borrower a reasonable opportunity to be heard.

17. In the event the Borrower's account is classified as a fraud account, the Lender shall have the right to examine the credit facilities and borrowal accounts of other group companies where one or more promoters or whole-time directors are common with the Borrower, for the purpose of assessing potential fraud risk.
18. If any Law Enforcement Agency initiates a suo motu investigation in relation to the Borrower's account, the Lender shall continue to classify and manage such account in strict accordance with its Board-approved Fraud Risk Management Policy and the applicable guidelines issued by the Reserve Bank of India (RBI).
19. The Lender may engage third-party service providers for conducting pre-sanction due diligence and post-sanction monitoring. Such service providers shall remain contractually accountable for their obligations, and in the event of any wilful negligence, misconduct, or malpractice on their part contributing to the occurrence or concealment of fraud, the Lender reserves the right to initiate appropriate contractual and/or legal action against them.

10. SEVERABILITY

The Borrower acknowledges that each of his/her obligations under these Financing Documents is independent and severable from the rest.

11. Dispute Resolution and Enforcement

The Borrower acknowledges and agrees that in the Event of Default or breach of this Agreement or the Financing Documents, the Lender shall be entitled to initiate appropriate legal, statutory or enforcement proceedings as permitted under applicable laws. This shall include, without limitation, proceedings under the Negotiable Instruments Act, 1881, the Payment and Settlement Systems Act, 2007 and proceedings under the Bharatiya Nyaya Sanhita, 2023, the Bharatiya Nagarik Suraksha Sanhita, 2023, the Bharatiya Sakshya Adhiniyam, 2023 and any other applicable laws or regulations.

Notwithstanding the foregoing, any civil disputes, claims or differences arising out of or in connection with the Financing Documents, including their interpretation, validity, performance or termination, may, at the sole discretion of the Lender, be referred to Arbitration in accordance with the provisions of the Arbitration and Conciliation Act, 1996, including any statutory modification or re-enactment thereof. The seat and venue of Arbitration shall be Mumbai, India. The arbitral award, if any, shall be final and binding on the Parties. Notwithstanding the above, the Lender may choose to conduct Arbitration through an independent online dispute resolution platform whose services are enlisted/to be enlisted by the Lender from time to time. In the event, the Arbitration is conducted through an online platform, the same shall be resolved by Arbitrator appointed independently by such platform and the Arbitration proceedings shall be carried out as per the provisions of the Arbitration and Conciliation Act, 1996 and also as per the rules and regulations of such online platform which shall be binding upon the Parties to the Arbitration. The Arbitrator may send the notices, claim statement, documents, replies, counters, adjournment letters etc., of the Arbitration proceeding to the Borrower's his/her/their registered e-mail ID or mobile number and the same shall be considered as proper service on the Borrower.

For avoidance of doubt, the existence of this Arbitration clause shall not restrict, limit, or prevent the Lender from initiating or continuing any legal, statutory, regulatory or enforcement proceedings under applicable law, including criminal or quasi- criminal proceedings, and the Borrower expressly consents to such parallel or independent remedies.

12. Governing Law and Jurisdiction

This Agreement and the Financing Documents shall be governed by and construed in accordance with the laws of India. Subject to the rights of the Lender under the Dispute Resolution clause above, the courts at Mumbai, India shall have exclusive jurisdiction over all matters arising out of or relating to the Financing Documents. However, the Lender shall be entitled, at its absolute discretion, to initiate or pursue legal or enforcement proceedings in any other court or tribunal (including concurrent proceedings in multiple jurisdictions), and the Borrower expressly consents to such jurisdiction.

13. TOP-UP / BALANCE TRANSFER

1. The Borrower acknowledges and agrees that, in the event a loan is sanctioned by the Lender as a top-up over an existing facility or as a balance transfer facility, with or without a top-up, the same standard set of loan documentation, including this Agreement, shall be utilised for the execution of such facility. The terms and conditions of this Agreement shall be read in conjunction with the principal loan agreement(s) previously executed by the Borrower with the Lender. The Lender further reserves the right to require the execution of any additional documents as may be deemed necessary from time to time.
2. Each such loan shall constitute a separate and distinct facility and shall be documented afresh through execution of this standard agreement, together with the applicable schedules, annexures, and security documents, unless otherwise specified by the Lender.
3. The Borrower further agrees that all terms, conditions, covenants, representations, and obligations set forth in this standard agreement format shall apply mutatis mutandis to each such top-up or balance transfer facility and shall be interpreted in harmony with the principal facility documents.

14. NOTICES

Any notice to be given to the Borrower in respect of Financing Documents shall be deemed to have been validly given if served on the Borrower or sent by registered post to or left at the address of the Borrower existing or last known business or private address. Any such notice sent by registered post shall be deemed to have been received by the Borrower within 48 hours from the time of its posting. Any notice to Lender shall be deemed to have been valid only if received by Lender at its above stated address.

15. ASSIGNMENT

1. The Borrower shall not be entitled to jointly or severally transfer or assign all or any of their right or obligation or duties under the Financing Documents to any person directly or indirectly or create any third-party interest in favour of any person without the prior written consent of Lender.
2. Lender shall be entitled to sell, transfer, assign or securitise in any manner whatsoever (in whole or in part and including through grant of participation rights) all or any of its benefits, right, obligation, duties and / or liabilities under Financing Documents, without the prior written consent of, or intimation to the Borrower in such manner and such terms as Lender may decide. In the event of such transfer, assignment or securitization, the Borrower shall perform and be liable to perform their obligation under the Financing Documents to such assignee or transferor. In such event, the Borrower shall substitute the remaining Auto-Mandate in favour of the transferee/ assignee if called upon to do so by Lender.

16. INDEMNITY

The Borrower hereby agrees to indemnify, defend, and hold harmless the Lender, its directors, employees, representatives, consultants, and third parties, from time to time and at all times, against any liability, claim, loss, judgment, damage, cost, or expense (including, without limitation, reasonable attorney's fees and expenses) as a result of or arising out of any failure by the Borrower to observe or perform any of the terms and, conditions and, or obligations contained in the Financing Documents or in the case of an Event of Default, or from the exercise of any of the rights by the Lender under the Financing Documents, including the enforcement of security or the recovery of Borrower's Dues

17. ACCEPTANCE

I / We am / are aware that Lender shall agree to become a party to this MITC only after satisfying itself with regard to all conditions and details filled by me / us in the MITC and other Financing Documents in consonance with Lender policy. I / We agree that this MITC shall be concluded and become legally binding on the date when the authorized officer of Lender signing this at Mumbai or on the date of first disbursement, whichever is earlier. By clicking "I accept", the Borrower electronically signs these MITC and agrees to be legally bound by its terms. The Borrower's acceptance of these MITC shall constitute: (i) the Borrower's agreement to irrevocably accept and to be unconditionally bound by all the terms and conditions set out in these MITC; and (ii) the Borrower's acknowledgement and confirmation that these MITC (along with the Financing Documents) have been duly read and fully understood by the Borrower.

I hereby affirm my understanding of the English language and the entirety of the facts, terms, and conditions outlined above.

I / We agree that I am not a Politically Exposed Person (PEP) ("Politically Exposed Persons" (PEPs) are individuals who are or have been entrusted with prominent public functions by a foreign country, including the Heads of States/Governments, senior politicians, senior government or judicial or military officers, senior executives of state-owned corporations and important political party officials) and further undertakes to immediately intimate the lenders' in the event that he/she and/or any of their family members /close relatives becomes a PEP. In this situation, the lenders' will seek senior management approval to sustain the business relationship. The account will then undergo Customer Due Diligence procedures, including ongoing enhanced monitoring, as required for PEP category customers.

Schedule 1 - Details of Recovery Mechanism:

- a. Si Creva Capital Services Private Limited ("Si Creva") is an RBI registered NBFC that follows all extant rules related to collections practices as laid down under regulations..
- b. The course of action followed by Si Creva in the event of default by the Borrower in repaying the scheduled repayment(s) is as follows:
 - In the event of any delay or default in payment of any amount due and payable by the Borrower in relation to the loan, the immediate action taken is to initiate messaging through SMS, in-app chat, Verified WhatsApp Business Account, IVR, notifications, and tele-calling. Calls to the Borrower(s) will be made within 8.00 am to 7.00 pm.
 - Si Creva delegates the recovery process to its network of field agents, who will visit the Borrower at the location which is stated in the loan application journey. A personal visit will also be made if specifically requested by the Borrower(s) at an alternative location of their choice. These visits will occur between 8:00 AM and 7:00 PM.
 - The Borrower will be informed in advance of the details of the recovery agent who will be making the follow-up visit. The collection/recovery agents are required to adhere to a board-approved Code of Conduct governing their interactions with Borrowers. All practices followed in the collection and recovery of dues, as well as the

Si Creva Capital Services Private Limited

Registered Office Address - 10th Floor, Tower 4, Equinox Park, LBS Marg, Kurla (West), Mumbai - 400070 Maharashtra, India

CIN - U65923MH2015PTC266425

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enforcement of security, will be in compliance with applicable laws.

- If Si Creva has exhausted all the actions outlined above without achieving a resolution, legal proceedings may then be initiated as permitted by applicable laws and in accordance with the terms of the Financing Documents,

Schedule 2- Details of Grievance Redressal Mechanism and Grievance Officer:

Level 1:

Call	022 62820570 / 022 48914921 - The customer can get in touch with the customer service executive over call between 9:30 am to 6:30 pm, 7 days a week & 365 days a year by dialling the above number. - If the customer is unable to connect due to temporary heavy call volumes. A callback shall be attempted, in most of the cases, by the customer services team to the customer to resolve his query/grievances.
Chat	022 48913631 - The customer can get in touch with the customer service executive over Chat (preferably from his/her registered mobile number) between 9:30 am to 6:30 pm, 7 days a week & 365 days a year by saving the above Official WhatsApp Chat number on his/her smartphone. In addition to WhatsApp Chat, the customer can also Chat with the customer service executive by simply using the Chat option given in the App. - During non-working hours, the customer can use the automated Chatbox service available on the same number for getting his/her basic queries resolved and for raising a grievance too.
Email	care@kisst.com a. The customer can get in touch with the customer service executive over Email by sending his query/grievance (preferably from his/her registered email id) to the above mentioned email id of the company.

Level 2: If customer is unable to get a satisfactory response or is unable to reach the above Level 1 channels for Grievance Redressal, he/she may choose to escalate the issue to the below mentioned officer's:

Lender	Grievance Redressal Officer (GRO) Ms. Munazza Sayyad Address: 10th Floor, Tower 4, Equinox Park, LBS Marg, Kurla West, Mumbai, Maharashtra 400070 Ph: 08044745954 Email: grievanceofficer@sicrevacapital.com / info@sicrevacapital.com	Nodal Officer (NO) Ms. Vaishali Malviya Address: 10th Floor, Tower 4, Equinox Park, LBS Marg, Kurla West, Mumbai, Maharashtra 400070 Ph: 08044745953 Email: nodalofficer@sicrevacapital.com / info@sicrevacapital.com
LSP	Grievance Redressal Officer (GRO) Mr. Reefat Shaikh Address: 10th Floor, Tower 4, Equinox Park, LBS Marg, Kurla West, Mumbai, Maharashtra 400070 Ph: 08044745952 Email: care@kisst.com	Nodal Officer (NO) Zaffar Khan Address: 10th Floor, Tower 4, Equinox Park, LBS Marg, Kurla West, Mumbai, Maharashtra 400070 Ph: 08044745951 Email: escalation@kisst.com

Important Notes:

- a. The Grievance Redressal Officer (GRO) may be reached on the number provided above anytime between 10:00 and 18:00 from Monday to Saturday except public holidays or through the e-mail address above. The GRO shall endeavor to resolve the grievance within a period of 14 days from the date of receipt of a grievance.

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- b. If the Borrower does not receive a response from the GRO within 14 (fourteen) days of making a representation, or if the Borrower is not satisfied with the response received from the GRO, the Borrower may reach the Nodal Officer anytime between 10:00 to 18:00 from Monday to Saturday except public holidays or write to the Nodal Officer at the e-mail address above.
- c. If the grievance is not redressed by the Nodal Officer of the Company, within a period of 30 (thirty) days, then the borrower can lodge a complaint over the Complaint Management System (CMS) portal under the Reserve Bank- Integrated Ombudsman Scheme (RB-IOS).

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